

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday August 11, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM

LINE 1

20-CIV-03986

ROBERT HARLOW, JR VS COVENANT AVIATION SECURITY, LLC

ROBERT HARLOW
COVENANT AVIATION SECURITY, LLC

EDWIN AIWAZIAN
COLLIN D. COOK

COMPLIANCE HEARING

TENTATIVE RULING:

On July 31, 2026, Taylor Mitzner of Phoenix Settlement Administrators (Phoenix), the settlement administrator, filed a further supplemental declaration stating that all checks to additional class members had been mailed, the time to cash checks has expired, and Phoenix mailed the unclaimed funds in the amount of \$232,666.25 to Legal Aid at Work (for use in San Mateo County).

Thus, there is nothing more to be done in this case and the court orders the case closed.

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 2

21-CIV-06333 FLOWRITE, INC. VS. 801 FASSLER, LLC, ET AL.

FLOWRITE, INC.
801 FASSLER, LLC

BRENDAN K OZANNE
ROBERT M GAGLIASSO

AK CONSTRUCTION ENTERPRISES, INC.'S MOTION FOR SUMMARY JUDGEMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION AGAINST FLOWRITE, INC. PURSUANT TO C.C.P. §437c

TENTATIVE RULING:

For the reasons stated below, Defendant AK Construction Enterprises, Inc.'s ("AK" or "AK Construction") Motion for Summary Judgment ("MSJ"), filed May 14, 2026, is DENIED. (Code Civ. Proc., § 437c.)

AK Construction's alternative Motion for Summary Adjudication ("MSA") is GRANTED as to the Third Cause of Action (foreclosure of Mechanic's Lien) and the Fifth Cause of Action (implied covenant of good faith and fair dealing).

AK Construction's May 14, 2026 Request for Judicial Notice ("RJN") is GRANTED. (Evid. Code § 452(c) [recorded documents]; § 452(d) [court-filed documents].) The Court takes judicial notice of each document's contents and filing/recording dates, but does not take judicial notice of the truth of statements in the documents.

Defendant AK Construction's July 31, 2026 "Objections to Statements by Flowrite" are OVERRULED. Most of these "objections" consist of objections to argument rather than objections to evidence. The objections to evidence (on page 4) go to weight, not admissibility.

The parties dispute whether Flowrite served, or properly served, the Opposition papers on July 21, 2026. AK Construction's Reply brief argues that the Opposition papers were not served, and that AK's counsel obtained the Opposition papers from the Court's docket. Flowrite, conversely, contends that the Opposition papers were electronically served on AK Construction on July 21, 2026 via One Legal. (Aug. 3, 2026 Shaffer Decl.) The Court considers the Opposition. AK's Reply papers address the substance of the Opposition papers, and AK has not identified any meaningful prejudice from the claimed lack of service. If AK can identify actual prejudice then the Court will consider continuing the motion to allow the issue to be addressed. If AK wants additional briefing, it shall properly contest the tentative ruling and make an offer of proof.

BACKGROUND

Defendant/Cross-Complainant 801 FASSLER, LLC ("Fassler") is the owner and developer of a townhome development project in Pacifica, California ("Property"). (UMF 1.) AK Construction contracted with Fassler to be the general contractor for the Project. (UMF 2.) In February 2021,

AK Construction subcontracted with Plaintiff Flowrite, pursuant to which, Flowrite would perform “civil sitework” for the Project. (UMF 3.) The Subcontract included a “Termination” clause, stating, in part:

SECTION 8. TERMINATION. ... (ii) Contractor may at any time and for any reason terminate Subcontractor's services hereunder at Contractor's convenience. In the event of termination for convenience, Subcontractor shall recover only the actual cost of work completed to the date of termination, in approved units of work or percentage of completion, plus fifteen percent (15%) of the actual cost of the completed work for overhead and profit. Subcontractor shall not be entitled to any claim or lien against Contractor, Owner, or anyone else for any additional compensation or damages in the event of such termination.

(May 14, 2026 Sharma Decl., Ex. B.) On about June 8, 2021, AK Construction terminated the Subcontract with Flowrite. (UMF 6.) Thereafter, Flowrite recorded a Mechanic’s Lien against the Project, claiming that AK Construction still owed Flowrite \$195,456.21 for work that Flowrite had completed. (UMF 7.)

On November 24, 2021, Flowrite filed this lawsuit. Flowrite’s Complaint asserts claims against AK Construction for: (1) breach of contract [breach of the Subcontract]; (2) quantum meruit; (3) foreclosure of Mechanic’s Lien; (4) violation of Prompt Payment statute; and (5) breach of the implied covenant of good faith and fair dealing. AK Construction moves for summary judgment on Flowrite’s Complaint, or alternatively, for summary adjudication of the Third and Fifth Causes of Action. (May 14, 2026 Notice of Motion.)

LEGAL STANDARD

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A defendant has met its burden of showing that a cause of action has no merit if defendant shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (*Id.*, § 437c, subd. (p)(2).) If a defendant meets this burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists to that cause of action, or a defense thereto. (*Id.*) “A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).)

Because summary judgment denies the adverse party a trial, it should be granted with caution. (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Summary judgment law turns on issue finding rather than issue determination. (*Diep v California Fair Plan Ass’n* (1993) 15 Cal.App.4th 1205, 1207.) The court does not decide the merits of the issues, but merely discovers whether there are issues to be tried and whether the parties possess evidence that demands the analysis of a trial. (*Melamed v City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) An MSJ is not a substitute for a bench trial. (*Assilzadeh, supra*, at 409.) The trial court’s role

involves no findings of fact. (*Raghavan v. Boeing Co.* (2005) 133 Cal.App.4th 1120.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar, supra*, 25 Cal.4th at pp. 843-856.)

*THE MSJ IS DENIED BECAUSE THE EVIDENCE RAISES A TRIABLE ISSUE AS TO
WHETHER AK CONSTRUCTION STILL OWES MONEY TO FLOWRITE UNDER THE
SUBCONTRACT*

Any triable issue relevant to any of the five causes of action asserted against AK Construction necessarily defeats summary judgment. For purposes of the MSJ, it does not matter whether AK Construction owes Flowrite the entire claimed \$195,456.21. The MSJ must be denied if the evidence raises a triable issue as to whether Flowrite is owed *any amount* of money under the Subcontract. The Court finds that the evidence raises a fact dispute on this question. Thus, the MSJ is denied. (See disputed Fact No. 26 [“Flowrite was paid all compensation it was entitled to receive, as required by Section 8, Subsection (ii) of the Subcontract, as of the date the Subcontract was terminated.”])

First, the evidence raises a triable issue as to whether AK Construction paid Flowrite for all completed work under the base contract.

Flowrite contends that AK owes Flowrite \$195,456.21 for completed work, consisting of both base contract work, and work performed pursuant to “Change Orders” and “Extra Work tags.” Specifically, Flowrite contends that AK owes payment for the following invoices: Invoice 21-0501 for \$59,316.25; Invoice 21-0601 for \$73,410; Invoice 21-0602 for \$39,672.96 (for “Change Order to Clear & Grubb Existing Road”); Invoice 21-0604 for \$63,360.69 (“Extra Work Tags”); and Invoice 21-0605 for \$6,050. (AMF 13; Giacalone Decl. ¶ 26; Barnard Decl. ¶ 9.)

AK Construction explains that Bridge Bank, a construction lender for the Project, periodically assessed, by way of a third-party consultant, Cardinal Consulting, Inc. (“Cardinal”), whether Flowrite had actually completed the work that Flowrite claims to have completed/performed. AK offers evidence that Cardinal periodically inspected the site to assess/verify work progress (including Flowrite’s work progress) (UMF 16), and that Cardinal thereafter provided reports and recommendations to Bridge Bank regarding the completed work. (See Sharma Decl., ¶¶ 7, 11.) With respect to Flowrite, Cardinal concluded/opined that Flowrite had *overstated/inflated* the progress of its work on the Project. AK explains that based on Cardinal’s opinion/assessment of Flowrite’s work progress, Bridge Bank authorized smaller/lesser payments to Flowrite, and in turn, AK Construction credited (and paid) Flowrite for less work than Flowrite claimed to have completed.

AK Construction’s Fact No. 24 states:

UMF 24. AK Construction did not withhold payments to Flowrite for its work on the Subject Project, rather, Bridge Bank reduced the amounts it approved for disbursement to

Flowrite for its monthly Draw Requests, because Cardinal Consulting, Inc. verified the percentages of completed work reported by Flowrite were artificially inflated.

(See also Sharma Decl., ¶¶ 7, 11 [same].)

But the conflicting evidence regarding how much work Flowrite completed under the base contract (and in turn, the dispute over whether Flowrite has been paid for all work it performed under the base contract), raises a classic factual dispute that prevents the Court from granting summary judgment. While AK apparently adhered to Cardinal's and Bridge Bank's opinion that Flowrite had completed less work than Flowrite claims to have completed, and accordingly, paid Flowrite a lesser amount, Flowrite offers conflicting evidence. (Giacalone Decl., ¶¶ 21-32; Barnard Decl., ¶¶ 1-13; see also Carney Decl., ¶ 5 [Mr. Carney, a Project Manager hired by AK Construction, who was familiar with Flowrite's work on the Project, testifying that he never observed Flowrite submitting invoices for work that Flowrite had not completed, and never observed Flowrite seeking payment for work that had not been performed].)

The evidence also creates a fact dispute about who determined the amount that Flowrite would be paid for its work. AK Construction seems to suggest that Bridge Bank, based on Cardinal's recommendations, determined the percentage completion of Plaintiff's work, and in turn, determined the amounts that Flowrite would be paid. But Flowrite offers evidence that AK's Project Manager, Mr. Sharma, "coordinated" the "payment draw requests" for AK Construction. (Carney Decl., ¶ 7.) If Flowrite is entitled to payment for of its work completed prior to termination, then it presumably is not a defense for AK to argue that a lender did not "approve" payments for some of that work.

The evidence also raises a fact dispute as to whether Flowrite was not fully paid due to funding limitations rather than any genuine dispute over how much work Flowrite had completed. Mr. Carney's declaration states that funding issues significantly impacted the Project and payments to contractors, and that "[f]unding limitations continued to affect both the timing and amount of the payments made on the project, often with no explanation." (Carney Decl., ¶ 3, 7.) See also Wheeler Decl., Ex. A [Giacalone Tr. at 62, testifying that AK Construction's budget was "very tight"].)

Viewing the evidence favorably to Flowrite (the non-moving party), at least for purposes of a motion for summary judgment, it suggests that AK Construction, not Bridge Bank, controlled payments to Flowrite, that AK Construction decided to pay Flowrite for less than the work that Flowrite claimed to have completed, and that budget concerns may have played a role in Flowrite's alleged underpayment. These are triable issues not amenable to summary judgment.

Further, the evidence raises a triable issue as to whether Plaintiff is owed money for Change Orders and/or "extra work items."

Flowrite offers evidence that, as of the June 8, 2021 Subcontract termination date, AK Construction purportedly owed \$111,000 for work done pursuant to Change Orders. (Giacalone Decl., ¶ 13.) AK Construction contends that it had no contractual obligation to pay for Change

Order work, because (1) the Subcontract was “fully integrated,” and it does not require payment for Change Orders in the event of termination (Reply at 5-6); (2) at the time of termination, the Change Orders only totaled \$111,000, and Mr. Giacalone purportedly agreed that no payment would be due unless and until the total reached \$150,000; and (3) § 5 of the Subcontract precluded compensation for additional work unless set forth in writing. The Court, however, finds a triable issue as to whether Flowrite is owed money for the Change Orders/extra work tags.

First, AK Construction’s argument that the Subcontract was “fully integrated” ignores that AK’s purported agreement regarding the Change Orders occurred *after* the subcontract was executed. Thus, the merger/integration clause that pertains to prior or contemporaneous agreements does not apply.

Second, whether the parties agreed that AK Construction would not pay the Change Orders unless (and only if) they reached a total of \$150,000 point is unclear/debatable. Mr. Giacalone’s declaration states:

8. As those field conditions arose, Flowrite prepared and transmitted change orders, work orders, and extra work documentation to AK. I personally prepared or directed the preparation of many of those change-order and extra-work requests. AK and I agreed that we would not collect on any Change Orders until the amount reached \$150,000, at which time we would meet and discuss payment and a resolution.

(Giacalone Decl., ¶ 8.) An agreement to refrain from discussing payment until the Change Orders totaled \$150,000 is very different than an agreement that AK Construction would owe nothing unless and until they totaled \$150,000. Viewing the evidence favorably to Flowrite, it raises a fact dispute about the nature of this alleged verbal agreement. Notably, although Mr. Giacalone states that he discussed the Change Orders with both Mr. Sharma and “AJ” Schultz (Giacalone Decl., ¶ 6), Mr. Shulz has not provided any declaration, and Mr. Sharma’s declaration does not even address the Change Orders. One might infer that if they never agreed to pay the Change Orders, they would have said so.

AK Construction’s reliance on § 5 of the Subcontract (“CHANGES IN WORK”) does not change the Court’s conclusion. AK argues that although Flowrite submitted about ten (10) Changes Orders in writing, AK never signed them, which precludes any obligation to pay them under § 5. Even assuming § 5 required signed Change Orders, the evidence here raises a question as to waiver. The evidence suggests that (1) Flowrite submitted about ten written Change Orders; (2) AK knew Flowrite was performing additional work; (3) the parties had an ongoing working relationship; (4) the parties discussed the Change Orders; (5) after execution of the Subcontract, the parties (arguably) agreed that once the Change Orders totaled \$150,000, the parties would discuss payment; and (6) Flowrite performed all of the work described in the Change Orders, with AK’s knowledge. (Giacalone Decl., ¶¶ 9-13.)

The foregoing raises a fact question as to waiver—that is, whether AK Construction, through its conduct and its Project Manager(s), waived or modified the “written change” requirement in § 5

of the Subcontract. The questions of what the parties agreed to with respect to the Change Orders, and whether AK waived the requirements in § 5, is a fact-intensive inquiry.

Haul-tags. Flowrite and AK Construction also disagree as to whether Flowrite is owed for hauling that Flowrite purportedly performed with its trucks. (UMF 31; AMF 10-14; Giacalone Decl. ¶ 34.) Because the Court finds that other triable issues preclude summary judgment, the Court need not address this additional dispute.

*DEFENDANT’S MSA OF THE THIRD CAUSE OF ACTION (“FORECLOSURE OF
MECHANIC’S LIEN”) IS GRANTED*

It is undisputed that on September 2, 2021, after AK Construction terminated the Subcontract, Flowrite recorded a Mechanic’s Lien against the Project, claiming that AK Construction owes Flowrite \$195,456.21 for completed work. (UMF 7.) It is also undisputed that around March 1, 2022, 801 Fassler, LLC, the project/Property owner, pursuant to Civil Code section 8424, recorded a “Release Bond” to release Flowrite’s Mechanic’s Lien, in the amount of \$244,320.27, or 125% of the lien amount [\$195,456.21], as required to relieve the claim of lien from the Property. (UMF 8.)

Civil Code section 8424 provides:

- (a) An owner of real property or an owner of any interest in real property subject to a recorded claim of lien, or a direct contractor or subcontractor affected by the claim of lien, that disputes the correctness or validity of the claim may obtain release of the real property from the claim of lien by recording a lien release bond. The principal on the bond may be the owner of the property, the direct contractor, or the subcontractor.
- (b) The bond shall be conditioned on payment of any judgment and costs the claimant recovers on the lien. The bond shall be in an amount equal to 125 percent of the amount of the claim of lien or 125 percent of the amount allocated in the claim of lien to the real property to be released. The bond shall be executed by an admitted surety insurer.
- (c) The bond may be recorded either before or after commencement of an action to enforce the lien. *On recordation of the bond, the real property is released from the claim of lien and from any action to enforce the lien.*
- (d) A person that obtains and records a lien release bond shall give notice to the claimant. The notice shall comply with the requirements of Chapter 2 (commencing with Section 8100) of Title 1 and shall include a copy of the bond. Failure to give the notice required by this section does not affect the validity of the bond, but the statute of limitations for an action on the bond is tolled until notice is given. The claimant shall commence an action on the bond within six months after notice is given.

(Civ. Code, § 8424 (emphasis added).) Flowrite’s argument that Fassler’s recording of the “Release Bond” does not moot the Third Cause of Action is incorrect, because it ignores the

distinction between the lien itself, and Flowrite's right to recover against the Release Bond. § 8424(c) unambiguously states that upon recording of the bond, the real property is released from the claim of lien "*and from any action to enforce the lien.*" § 8424(d) then explains what a lien claimant's remedy becomes: after receiving notice of the bond, the lien claimant must then commence "*an action on the bond*" within six months.

Here, given the undisputed recordation of Fassler's Release Bond, Flowrite's cause of action seeking "foreclosure of Mechanic's Lien" is moot. (See *Hutnick v. U.S. Fid. & Guar. Co.* (1988) 47 Cal. 3d 456, 463; *RGC Gaslamp, LLC v. Ehmcke Sheet Metal Co.* (2020) 56 Cal.App.5th 413, 424 ["Once a release bond is recorded, it becomes the lien claimant's sole recourse for collecting sums due."]). As explained in *Hutnick* and *RGC Gaslamp*, once a release bond is recorded, the lien and foreclosure remedy against the Property disappear, the bond becomes security for the claim, and the claimant (Flowrite) must proceed against the bond. § 8424; *Hutnick, supra*, at 463; *RGC Gaslamp, LLC, supra*, at 424. Plaintiff is correct that the bond does not extinguish the underlying claim. (*Id.*) But the bond takes the place of the Property as security. (*Id.*) The recording of the bond releases the Property from the lien and from any action to enforce the lien. (*Id.*) The bond is substituted for the lien, and the bond becomes the lien claimant's sole recourse for collecting the sums due. (*Id.*)

Accordingly, Defendant's MSA as to the Third Cause of Action (to foreclose on the Mechanic's Lien) is granted.

*DEFENDANT'S MSA OF THE FIFTH CAUSE OF ACTION ("BREACH OF IMPLIED
COVENANT OF GOOD FAITH & FAIR DEALING") IS GRANTED*

The implied covenant of good faith and fair dealing cannot be construed to prohibit conduct that is expressly permitted by the parties' agreement—and here, the Subcontract provides AK Construction with an unambiguous right to terminate the agreement at any time, for any reason. (*Carma Developers (Cal.), Inc. v. Marathon Development Calif., Inc.* (1992) 2 Cal.4th 342, 373 (*Carma*) ["We are aware of no reported case in which a court has held the covenant of good faith may be read to prohibit a party from doing that which is expressly permitted by an agreement. On the contrary, as a general matter, implied terms should never be read to vary express terms."])

Plaintiff's Complaint's Fifth Cause of Action alleges:

35. AK breached this covenant of good faith and fair dealing when they, without any proper justification, terminated the Agreement for the sole purpose of shopping out the remaining work to be performed at the Subject Property for cheaper or less expensive subcontractors.

The parties' Subcontract states, in part:

SECTION 8. TERMINATION. Contractor may at any time and for any reason terminate Subcontractor's services hereunder at Contractor's convenience

Plaintiff's pleaded theory—that AK breached the implied covenant by terminating the Subcontract for the purpose of obtaining a cheaper subcontractor—would impose a restriction on AK's express contractual right to terminate for any reason. Plaintiff therefore cannot maintain an implied covenant claim based upon AK Construction's exercise of that express right.

Plaintiff points to Mr. Giacalone's (Flowrite's Principal) alleged agreement with AK that Flowrite "would not collect on any Change Orders until the amount reached \$150,000" (Giacalone Decl., ¶ 8), and Flowrite argues that AK Construction breached the implied covenant by intentionally terminating the contract before the accumulated Change Orders reached the \$150,000 amount, to avoid having to pay them. Even assuming, *arguendo*, that AK terminated the contract for that reason, the implied covenant claim would still fail, for two reasons.

First, as stated, the Subcontract gives AK the express right to do that. The contractual language stating that "Contractor may at any time and for any reason terminate Subcontractor's services hereunder at Contractor's convenience" is about as explicit as it gets. As the California Supreme Court has explained, the implied covenant ordinarily does not permit the Court to substitute its own notion of fair dealing for the parties' express agreement. (*Carma, supra*, 2 Cal.4th at 373.) For this Court to find that AK Construction could terminate for any reason *except for the purpose of trying to save costs by finding cheaper subcontractors* would substantially rewrite the contract—which the Court generally cannot do.

This does not necessarily mean that Plaintiff is barred from seeking payment for the Change Orders as a purported breach of the Subcontract, but that is a breach of contract argument, not an implied covenant theory.

Second, and independently, Flowrite's Complaint does not plead this factual theory of bad faith pertaining to the Change Orders. The Complaint alleges only that AK Construction breached the implied covenant by terminating the contract for the purpose of trying to find cheaper subcontractors. It alleges nothing about Change Orders or an agreed-upon \$150,000 point at which the parties would discuss payment. This argument pertaining to the Change Orders is a materially different theory. Flowrite seeks to defeat summary adjudication by introducing evidence of an additional, un-pleaded factual theory of bad faith, which is generally not permissible. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381.)

Accordingly, the MSA as to the Fifth Cause of Action (implied covenant of good faith and fair dealing) is granted.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for defendant AK shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

23-CIV-00637

ANGEL PADILLA VS DISCOVERY PRACTICE MANAGEMENT, INC.

ANGEL PADILLA
DISCOVERY PRACTICE MANAGEMENT, INC.

MEHRDAD BOKHOUR
NANCY RADER WHITEHEAD

PLAINTIFF'S UNOPPOSED MOTION TO APPROVE THE SETTLEMENT PURSUANT TO THE PRIVATE ATTORNEY'S
GENERAL ACT OF 2004

CONTINUED FROM 7/14/2026

TENTATIVE RULING:

The court rules on plaintiff Angel Padilla's second Motion for Approval of Private Attorney General Act (PAGA) Settlement as follows:

On March 10, 2026, this court originally heard the motion and continued it regarding questions the court had. At the July 14, 2026, the court had additional questions. On July 28, 2026, plaintiff's counsel Mehrad Bokhour filed a supplemental declaration responding to those questions. This declaration sufficiently responded to the court's questions.

On February 9, 2023, Plaintiff filed an individual and class action wage and hour lawsuit. On April 14, 2023, Plaintiff filed a first amended complaint adding a PAGA action. On September 5, 2023, with a written order filed November 8, 2023, the court granted in part and denied in party defendant's motion to compel arbitration. The Court compelled plaintiff's individual and class claims to arbitration and stayed the PAGA representative claim. (Order of Nov. 8, 2023.) On September 11, 2025, Defendant filed a notice of related case that this case was related to three cases, one in San Diego Superior Court, one in Los Angeles Superior Court, and one in Orange County Superior Court. The Court has no information about the status of any of these cases.

According to the original motion, it is estimated that there are approximately 2,245 aggrieved employees who worked 63,000 pay periods. The proposed settlement amount is \$1,102,500. The settlement will provide a payment of \$520,695.63 to the California Labor and Workforce Development Agency (LWDA) (i.e., 75% of the \$694,260.84 PAGA Penalties Fund). The remaining \$173,565.21 shall be distributed amongst the aggrieved employees.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77 (*Moniz*), disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]); see *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 ["The court has a fiduciary responsibility as guardians of the

rights of the absentee class members when deciding whether to approve a settlement agreement.’ ”]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

Plaintiff has provided a more detailed analysis of the strength of his claims, and the Court determines that the settlement is fair, reasonable, and adequate in view of PAGA’s purposes. Bokhour has provided further information the arbitration, class claims and lawsuits pending in different venues. This additional information confirms that the settlement is fair, reasonable and adequate. The court has granted plaintiff’s request to dismiss the class claims without prejudice due to the class action waiver in arbitration agreements.

Plaintiff’s counsel Joshua Falakassa previously added several paragraphs to his declaration which describe his specific experience. The parties participated in a mediation session with Abe Melamed, Esq.

Plaintiff has provided notice to the LWDA of the settlement as required by Labor Code section 2699, subdivision (s)(2)). (Bokhour Dec., ¶ 51, Ex. D.)

Plaintiff’s counsel has revised the notice letter to accompany penalty checks in accordance with the court’s comments.

The court approves the settlement. **However, uncashed checks should go to a cy pres recipient, as with a class action. The parties shall meet-and-confer and APPEAR at the hearing (Zoom appearances are allowed) to discuss the cy pres recipient(s), organizations that meet the requirements of Code of Civil Procedure section 384 and will be for the benefit of San Mateo County and its residents.**

The court grants plaintiff’s counsel request of attorneys’ fees in the amount of one third of the gross settlement.

The court in reviewing the facts of this case finds that a one-third award is appropriate. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*) [“33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits”]; *Chavez v. Netflix, supra*, 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits].)

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte, supra*, 1 Cal.5th at p. 503.)

In reviewing the evidence submitted, the court finds that the hourly rates are reasonable. Bokhour provides further information showing the requested rates are reasonable in San Mateo County. (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) This court also uses its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 [“The trial court acted well within its discretion in using

‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.’” (citations omitted)].). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. The court finds the hourly rates of \$750.00 and \$725.00 per hour reasonable.

Bokhour provides additional detailed information about the hours expended and the court finds, after reviewing his declaration and the record, that the hours were reasonable, even the work that at first glance appears duplicative. The division of labor was fair and the work justified.

The lodestar amount is lower than the requested fees, but the court awards the requested multiplier of 1.38. The lodestar amount “ ‘may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.’ ([Citations])” (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) “ ‘[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” [Citation] ‘[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, e.g., to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.’ [Citation] In cases involving the enforcement of constitutional or statutory rights, “such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] ‘[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded calendars a case in which payment is contingent.’ ” [Citation.] (*Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier. (*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.)

The court believes that a multiplier is appropriate here because of the fact that plaintiff’s counsel has had to wait to get paid for the work they have performed and plaintiff’s counsel worked efficiently.

The court approves the costs of \$18,239.16 to class counsel as reasonable and necessarily incurred. Bokhour clarified that Phoenix Class Action Administration Solutions is the correct settlement administrator and the court approves its costs up to \$12,500.00 as reasonable and necessary.

Plaintiff requests a service award of \$10,000, but the court awards \$7,500.00 to class representative as a reasonable service fee award. In looking at all the facts of this case, the court

believes that it is a fair and appropriate service award. The court acknowledges the important role plaintiff played in the litigation.

The parties shall meet-and-confer and propose at the hearing a date for a compliance hearing (a Tuesday at 2:00 p.m.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The proposed order shall also include other information plaintiff believes is necessary for the order but nothing shall contradict what is in this tentative ruling.

2:00 PM

LINE 4

23-CIV-04076

BILLY STOKES, ET AL. VS. SAN MATEO COUNTY HARBOR DISTRICT

BILLY STOKES
SAN MATEO COUNTY HARBOR DISTRICT

PRO SE
NICHOLAS SYREN

SAN MATEO COUNTY HARBOR DISTRICT'S MOTION TO DISMISS

TENTATIVE RULING:

Defendant San Mateo County Harbor District's Motion to Dismiss this action is GRANTED.

Defendant's request for judicial notice of Plaintiff's First Amended Complaint ("FAC") and this Court's Order Sustaining Defendant's Demurrer to Plaintiff's FAC is GRANTED.

Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.].) This Court believes, especially when the issue is one of law and the opposing party is in pro per, "that the integrity of the judicial process requires ... [the Court] to subject every motion to review before granting it." (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.22 (Thomson Reuters Mar. 2026 update).) Therefore, the Court has substantively reviewed Defendant's motion to dismiss. However as set forth below, the Court also takes note of the failure of Plaintiff to file an opposition, the fact that Plaintiff simply filed the amended complaint rather than seeking leave to file the untimely amended complaint, and that Plaintiff in the amended complaint fails to cure the fatal flaw of the FAC by providing facts showing compliance with the required claims statutes or a reason that an exception applies.

BACKGROUND

This Court sustained Defendant's demurrer to Plaintiff's FAC on April 6, 2026 on the basis that Defendant had not yet been presented with the required government tort claim. The Court granted Plaintiff leave to amend within 10 days of notice of entry of that order. (See Defendant's RJN, Ex. B, Order Sustaining Demurrer) Defendant served Plaintiff with notice of the order by mail on April 20, 2026. (Notice of Entry of Order, filed April 20, 2026.) Because service by mail extends a party's deadline to respond by five calendar days, Plaintiff had until May 5, 2026, to file an amended complaint. (Code Civ. Proc., § 1013 [extending deadline to respond by five days where service is made by mail].)

Plaintiff failed to meet that deadline and Defendant filed this motion to dismiss on May 20, 2026. On July 22, 2026, Plaintiff filed a Second Amended Complaint (“SAC”) – 78 days after the deadline. Plaintiff did not seek leave to file the SAC after period granted for leave to amend, did not allege facts alleging compliance with the claims statutes or an applicable exception to the requirement nor did Plaintiff oppose the pending motion to dismiss.

LEGAL ANALYSIS

A court may dismiss a complaint after a demurrer is sustained with leave to amend and the plaintiff fails to amend within the court-ordered time. (Code Civ. Proc., § 581, subd. (f)(2).)

Courts have upheld dismissal where the plaintiff’s failure to timely amend was prolonged and unexplained. (*See, e.g., Harding v. Collazo* (1986) 177 Cal.App.3d 1044, 1052, 1054 [affirming dismissal where the plaintiff had failed to file a second amended complaint for 60 days past the stipulated deadline]; *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 608, 612-614 [affirming dismissal where defendant failed to file fourth amended complaint for more than a month after 20-day period granted by the court passed, with no excuse for not seeking an extension].)

Here, as summarized above, Plaintiff had until May 5, 2026 to file an amended complaint. Plaintiff did not meet that deadline and, without seeking leave to amend, filed an untimely SAC on July 22, 2026 – 78 days after the deadline. The Court finds that dismissal of this action is warranted.

The Court acknowledges case law holding that the filing of an amended complaint, even if untimely, precludes dismissal under Code of Civil Procedure section 581, subdivision (f)(2) unless and until the amended complaint is stricken. (*Gitmed v. Gen. Motors Corp.* (1994) 26 Cal.App.4th 824 (*Gitmed*); *Bai v. Yip* (2024) 107 Cal.App.5th 188 (*Bai*).) However, both *Gitmed* and *Bai* involved untimely amendments filed by plaintiffs *before* defendants filed a motion to dismiss. Here, Plaintiff filed his SAC on July 22, 2026, well after Defendant filed its motion to dismiss on May 20, 2026, and without leave of court. The Court is unaware of any case addressing whether an untimely amended complaint filed after a motion to dismiss must be stricken before dismissal may be granted.

The Court finds that distinction significant. Allowing a post-motion amended complaint to defeat dismissal proceedings would undermine the finality and efficiency that Code of Civil Procedure section 581, subdivision (f)(2) is designed to provide. The rationale underlying the *Gitmed* Court’s decision supports that conclusion, as *Gitmed* expressly relied on the timing of amended complaint in relation to the motion to dismiss:

The facts here are similar to those in *Brown v. Brown* (1959) 169 Cal.App.2d 54, 337 P.2d 140. *Brown* involved a demurrer which was sustained with ten days leave to amend. Plaintiffs filed their amended complaint nine months later. Forty-nine days after the amendment was filed, the defendants moved to dismiss the complaint pursuant to section 581, subdivision 3 because the amendment had not

been timely filed. The trial court granted the motion. **On appeal, the court reversed and compared the situation to section 585 default proceedings, holding that:** “[t]he plaintiff, by his inaction, loses the right to have a default and default judgment entered *as a matter of course, but the defendant does not gain an absolute right to file a belated answer.* ... The answer, filed after the time has elapsed, may, *in the court's discretion* ..., be *stricken out* on motion of the plaintiff, and then the default may be entered.” (*Brown v. Brown, supra*, 169 Cal.App.2d at p. 57, 337 P.2d 140.) **This analogous reasoning squares section 581, subdivision (f)(2)** with other pleading situations where “it is generally recognized that an untimely pleading is not a nullity, and it will serve to preclude the taking of default proceedings unless it is stricken. [Citations.]” (*A & B Metal Products v. MacArthur Properties, Inc.* (1970) 11 Cal.App.3d 642, 647, 89 Cal.Rptr. 873.) Accordingly, once the amended pleading is filed, the court must first grant a motion to strike the pleading before the action can be dismissed.

Applying the *Brown* rule to the matter at bar, we conclude that the filing of the amended complaint prevented the trial court from entertaining the motion to dismiss. The proper procedure would have been for the defendant to bring a motion to strike the amendment *before* moving to dismiss the complaint.

(*Gitmed, supra*, 26 Cal.App.4th at 827-28 [bold emphasis added, italics in original].)

Accordingly, the Court orders the SAC stricken and grants the motion to dismiss

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order and proposed judgment consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

24-CIV-00280

INOCENCIO SANCHEZ VS. TERESA GODINEZ VIDRIO

INOCENCIO SANCHEZ
TERESA GODINEZ VIDRIO

MARIO FAUSTO
DYLAN HACKETT

DEFENDANT'S OBJECTIONS TO TENTATIVE DECISION AND PROPOSED STATEMENT OF DECISION

TENTATIVE RULING:

Defendant has requested oral argument on this court's tentative decision and proposed statement of decision. Therefore, the parties are to APPEAR. Zoom appearances are allowed.

2:00 PM

LINE 6

24-CIV-02224

CAROLYN DIXON, ET AL. VS. CYNDA WATKINS, ET AL.

CAROLYN DIXON
CYNDA WATKINS

J EDWARD KERLEY
KIRILL DEVYATOV

PLAINTIFF'S MOTION FOR BIFURCATION OF TRIAL ON PLAINTIFFS' EIGHTH CAUSE OF ACTION FOR DECLARATORY RELIEF

TENTATIVE RULING:

Plaintiffs Carolyn Dixon's and David Bassi's motion for an order bifurcating trial to decide the eighth cause of action in plaintiff's First Amended Complaint ("FAC") filed May 22, 2024, is DENIED.

Background

Plaintiffs' home was burned in a fire in late 2020. Until late spring of 2024, plaintiffs' insurer Defendant State Farm was investigating, making adjustments for and payments on the claim plaintiffs had filed against their insurance policy with defendant. It is undisputed that the policy contains a one-year limitations to sue provision which would be tolled from the date of loss and notification until defendant provided unequivocal written notice it would pay no further benefits under any coverage provided by the policy. The matter has been set for jury trial in August 2027.

The instant motion, similar to plaintiffs' motion for summary adjudication, requests that the Court bifurcate trial for a first phase decision regarding the FAC's eighth cause of action for declaratory relief under Code of Civil Procedure section 598 and enter a ruling as to the FAC's cause of action for declaratory relief because it is an equitable question thus for the bench, not a jury to decide. In so doing the Court would simultaneously sustain or overrule defendants' affirmative defense based on the statute of limitations.

Defendant State Farm opposes, as they did plaintiff's motion for summary adjudication, contending that the question before the Court— whether defendants' January 12, 2023 letter was an unequivocal denial or not based on the meaning of the word "claim" as it is used (and thus ending the tolling period)—is a question of fact that a jury, not judge, should decide under *Stofer v. Shapell Industries, Inc.* (2015) 233 Cal.App.4th 176, 189 and related cases.

Legal Standard

Under Code of Civil Procedure section 1048, subdivision (b), a judge may order a separate trial of any cause of action asserted in a complaint or a cross-complaint, or any separate issue. "A trial court has discretion to determine the order in which claims or issues are bifurcated and determined, and the selection and scheduling of those phased determinations will not be disturbed

absent an abuse of that discretion.” (*Antelope Valley Groundwater Cases* (2020) 59 Cal.App.5th 241, 273.) Similarly, an order to bifurcate under Code of Civil Procedure section 598 may be made “when the convenience of witnesses, the ends of justice or the economy and efficiency of handling the litigation [are] promoted.” (*Id.*) Generally speaking, an order under either statute is appropriate when it promotes “convenience, to avoid prejudice, and to expedite the trial of a case.” (*Cal. Judges Benchbook Civ. Proc. Before Trial* (March 2026 update) § 2.72.) Code of Civil Procedure section 597 provides that “when the answer pleads that the action is barred by the statute of limitations, the court may proceed to the trial of such special defense before the trial of any other issue in the case. ... the objective of the bifurcation of the issues is avoidance of waste of time and money caused by the trial of issues which may be rendered moot.” (*Bedolla v. Logan & Frazer* (1975) 52 Cal.App.3d 118, 135.) Plaintiff brings the instant motion under the authority of all three statutes.

Discussion

Plaintiff’s eighth cause of action in the FAC seeks declaratory relief that the limitations period was equitably tolled from December 14, 2020 until State Farm “provided unequivocal written notice that it would pay no further benefits under any coverage provided by the policy. (FAC, ¶ 174.) The resolution of whether equitable tolling applies is a question for the court to resolve. (*Hopkins v. Kedzierski* (2014) 225 Cal.App.4th 736, 745.) The policy of this state is to try equitable issues first. (*Nationwide Biweekly Administration, Inc. v. Superior Court* (2020) 9 Cal.5th 279, 317.) This rule is not absolute as the Court still maintains discretion regarding the order of the trial. (*Ibid.*)

The equitable tolling issue is whether Defendant State Farm’s January 12, 2023 letter (See Declaration of Kirill M. Devyatov in Opposition to Motion to Bifurcate, Ex. B) was an unequivocal denial that State Farm would pay no more benefits to Plaintiffs which ended the equitable tolling that had started when Plaintiffs suffered the loss and sent their December 14, 2020 letter about the fire.

Plaintiffs’ basically claim that the court can decide this issue as a matter of law based solely on the January 12, 2023 letter by interpreting the case law, non-California authority discussed in Plaintiffs’ motion and their prior motion for summary judgment on the Eighth Cause of Action. They claim that the case can be presented in one-half day or less.

Defendants raises numerous points in opposition, but the main issue for the Court is whether Plaintiffs are correct that the issue can be decided on the January 12, 2023 letter and little else. Defendants correctly point out that this Court has already determined that, under the current evidence, there is a dispute of fact regarding tolling because a reasonable fact finder could determine *either* that the January 12, 2023 letter was an unequivocal denial, or not. On the current record, then, application of tolling and the limitations period, including Plaintiffs’ theory that State Farm somehow waived the right to rely on the limitations period, presents a jury-triable issue impacting defendants’ right to conduct further discovery as to the insureds’ understanding of the limitations period, and to present this defense, and any factual disputes pertaining to the defense, to a jury. The Court agrees.

As the Court previously ruled, “[i]n this case, there is a triable issue as to whether all coverage under the policy and Insureds’ purported singular ‘claim’ was unequivocally denied in writing in the January 12, 2023 letter. The letter refers to a single claim assigned a single claim number, announced State Farm’s intent to close “the matter,” and directed Insureds to the one-year limitations provision. (DMF, no. 38.) The crucial issue is the definition of “claim” and to the Court, that determination needs to be made from the introduction of more than the January 12, 2023 letter, but instead from the entire course of conduct and communications between Plaintiffs and Defendants to determine how the parties treated the loss, whether as one claim or multiple claims and the representations that were made by Defendants. The facts to resolve the equitable tolling agreement appear to substantively overlap other claims and issues, such as the third cause of action for insurance bad faith, the fourth, fifth and sixth causes of action for fraud, the seventh cause of action negligent failure to obtain policy benefits, and the issues of waiver and estoppel, which are all issues to be decided by the jury. Based upon the briefing, both parties agree that even if the Court decides the issue of equitable tolling in favor of Plaintiffs, other issues will need to be decided.

While Plaintiffs may be correct that a ruling in their favor on equitable estoppel may make settlement more likely, that factor is not one that the Court can weigh in determining bifurcation. Moreover, the Court cannot assume that Plaintiffs will prevail on this issue. Instead, the Court needs to decide if a bifurcated trial will promote economies, efficiencies and the ends of justice. While the policy of the State is to try equitable issues first, based upon the factual dispute of whether there was one claim or multiple claims that overlap with the issues that will have to be tried before the jury, the Court in exercising its discretion concludes that bifurcation is not appropriate here.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 7

24-CIV-03224

ZOILA GARCIA, INDIVIDUALLY, AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED VS
BAY AREA HERBS & SPECIALTIES, LLC

ZOILA GARCIA, INDIVIDUALLY, AND ON BEHALF OF ALL OTHERS
SIMILARLY SITUATED
BAY AREA HERBS & SPECIALTIES, LLC

SEUNG YANG

JOHN F. HYLAND

UNOPPOSED MOTION FOR FINAL APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

TENTATIVE RULING:

The motion for final approval is continued until November 17, 2026 at 2:00 p.m.

2:00 PM

LINE 8

24-CIV-03224

ZOILA GARCIA, INDIVIDUALLY, AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED VS
BAY AREA HERBS & SPECIALTIES, LLCZOILA GARCIA, INDIVIDUALLY, AND ON BEHALF OF ALL OTHERS
SIMILARLY SITUATED
BAY AREA HERBS & SPECIALTIES, LLC

SEUNG YANG

JOHN F. HYLAND

MOTION FOR ATTORNEY FEES

TENTATIVE RULING:

The court denies without prejudice plaintiff's counsel request for attorneys' fees, costs, and service awards. The court continues the motion to November 17, 2026 at 2:00 p.m. Plaintiffs' counsel shall file and serve supplemental pleadings on or before October 27, 2026. Plaintiffs are also reminded to provide courtesy copy binders to the court in compliance with paragraph 11 of the Case Management Order No. 1 filed June 18, 2024. The binder shall contain the papers for this motion and the supplemental motion. Counsel's failure to comply with this order for this motion has increased the court's workload.

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503.)

In reviewing the evidence submitted, the court finds that plaintiff's counsel makes no attempt to show that the hourly rates are reasonable for San Mateo County where this case is venued. Counsel must demonstrate that the rates are reasonable for San Mateo County. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Further, counsel requests a blended rate of \$800.00, but provide no facts to support how that blended rate was calculated.

The court also has concerns regarding the work performed. There is no discussion on why there needed to be four attorneys on the case and how the work was allocated. Some of the work appears duplicative, some of the time for tasks appears potentially excessive, and it appears that some of the tasks could have been performed by attorneys that charge at a lower rate. Plaintiffs' counsel needs to provide further facts. Further, the court has concerns regarding the accuracy of the time entries attached as Exhibit 3 to the declaration of Tiffany Hyun. For example, there is no time for the hearing on the motion to compel arbitration and case management conference on September 24, 2024 and, in fact, no entries at all regarding the motion to compel arbitration despite the fact that plaintiff signed a stipulation signed on July 15, 2024 and filed July 19, 2024 for an order regarding a briefing schedule for the motion to compel arbitration, plaintiffs filed an opposition on August 21, 2024 and provided supplemental briefing on October 15, 2024.

As to the service awards, the declaration of Zoila Garcia is conclusory with general statements about time spent. There are no facts demonstrating claims that she gave up by signing a general release. There are no facts demonstrating reputational harm. While the court is aware of reputation harm, the law protects an employee from being retaliated against by an employer and if any plaintiff believe that any employer is retaliating against her for being a plaintiff in this lawsuit, they shall notify their counsel who shall immediately notify the court. The court has not been advised at any time during the course of this litigation of any alleged retaliation. *Gentry v. Superior Court* (2007) 42 Cal.4th 443 discusses the fear of retaliation as a reason an employee might not bring a lawsuit, but our Supreme Court states that the statistics demonstrated that enforcement mechanisms to sanction retaliation were working. (*Id.* at pp. 460-461.) There is no declaration from Carlos A. Orellana for final approval; only a conclusory declaration regarding time spent for preliminary approval.

As to the costs, there is no description for “Steno Litigation” and “Steno Invoice,” and “Admin Fee” for the cost to determine if the costs are reasonable and necessarily incurred.

2:00 PM

LINE 9

25-CIV-00564

ELAINE RYZAK FRASER VS. DWIGHT O WILLIAMS

ELAINE RYZAK FRASER
DWIGHT O WILLIAMS

ELAINE R. FRASER
PRO SE

MOTION TO SET ASIDE DEFAULT

TENTATIVE RULING:

The Motion to Set Aside Default (the “Motion”) brought by Defendant Dwight O. Williams is GRANTED.

Background

Per the Complaint, Defendant retained Plaintiff as his attorney in his dissolution matter in 2018. On about September 21, 2021, Defendant became delinquent in paying Plaintiff under the parties’ legal fee agreement, and thereafter kept promising Plaintiff to pay her from a personal injury settlement and from the sale of his house, but Plaintiff was never paid beyond a last payment of \$1,000 on January 4, 2024 (Complaint, p.5, ¶ 15) or May 1, 2024 (*id.*, p.6, box FR-2.b). Defendant has allegedly failed and refused to pay Plaintiff \$54,795.28.

Plaintiff requested and the Clerk entered the default of Defendant on December 2, 2025 (the “Default”). Plaintiff also sought a default judgment by the court, which the court denied without prejudice. (Judgment Denied without Prejudice, filed on March 5, 2026, p.2.)

As to the penultimate point, the court’s records show that Plaintiff filed proofs of service upon Defendant by substituted service upon his tenant at “236 Marvilla Cir [¶] Pacifica, CA 94044” and by mail at the same address (two Proofs of Service of Summons, filed on December 2, 2025, pp.1), which the court found questionable so that the served document was not filed.

Through his Motion to Set Aside Default (the “Motion”), Defendant now seeks an Order setting aside the default and any default judgment, and allowing him to file his proposed Answer.

The Motion Is Granted.

Inter alia, Defendant asserts that he was not validly served. (Code Civ. Proc., § 473, subd. (d).) In pertinent part, this statute provides that, “The court may, ... on motion of either party after notice to the other party, set aside any void judgment or order.”

According to Defendant and not disputed by Plaintiff, Defendant relocated from his residence in Pacifica, California, to Florida in 2020. (Williams Decl., ¶¶ 7, 9.) When the Summons and Complaint were served to his Pacifica address, it was occupied not by Defendant but by his tenants, whom he had not authorized to accept service of process on his behalf. (*Id.*, ¶ 10.) Defendant does not recall being personally served at his Florida residence. (*Id.*, ¶ 12.)

The Court’s records show that Plaintiff attempted service upon Defendant at an address in Florida (Non Service Report, filed on April 15, 2025), and then by substituted service upon his tenant at

“236 Marvilla Cir [¶] Pacifica, CA 94044” and by mail at the same address (Proof of Service of Summons, filed on June 10, 2025).

The non-service in Florida clearly is not constitute service. The last two declared forms of service are the same as those that the court later found questionable. Since Defendant’s tenant was not his authorized agent for service of process, the Court finds based upon Defendant’s declaration, that there was not proper service. The requirements of the statutes governing service of process are to be strictly followed especially in light of the strong public policy of California courts to dispose of cases on their merits. Our Supreme Court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it. “As Justice Mosk put it in *Rappleyea [v. Campbell]* (1994) 8 Cal.4th 975] Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–135 [internal quotations omitted].) Thus, the Default is void. The Motion is granted. (Code Civ. Proc., § 473, subd. (d).)

Defendant is to file his proposed answer within five court days after notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

25-UDL-00283 HSBC BANK USA, NATIONAL ASSOCIATION AS TRUSTEE FOR DEUTSCHE ALT-A SECURITIES
MORTGAGE LOAN TRUST, SERIES 2007-OA5, ET AL. VS. FERMIN ANIEL, ET AL.

HSBC BANK USA, NATIONAL ASSOCIATION AS TRUSTEE FOR DEUTSCHE WILLIAM R. JARRELL
ALT-A SECURITIES MORTGAGE LOAN TRUST, SERIES 2007-OA5
FERMIN ANIEL

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT (CODE CIV. PROC. §§ 437 & 1170.7)

TENTATIVE RULING:

Plaintiff HSBC Bank USA, N.A.'s Motion for Summary Judgment is DENIED. With the court's permission, plaintiff has brought a second motion for summary judgment.

As a preliminary matter, there are multiple procedural defects in the motion. First, the exhibits submitted in support of the motion have not been electronically bookmarked, in violation of the California Rules of Court. (See Cal. Rules of Court, rule 3.1110(f)(4).) Second, the request for judicial notice has not been made in a separate document. (See *id.*, at rule 3.113(l).) Third, the evidence in support of the motion, which exceeds twenty-five pages, is not separately bound nor does it include a table of contents. (See *id.*, at rule 3.1350(g).) Despite these defects, the motion has been considered on the merits. All parties are advised that further violations of the California Rules of Court are subject to sanction. (See *id.*, at rule 2.30.)

Plaintiff HSBC Bank USA, N.A.'s Request for Judicial Notice is GRANTED as to exhibit A, but only as to its existence as a recorded document and its legal effect, and GRANTED as to exhibits B–D, but only as to their existence as court records and not for the truth of any matter stated therein.

A. Legal Standard on Summary Judgment

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A plaintiff moving for summary judgment has an initial burden of proving each element of the cause of action entitling him or her to judgment on that cause of action. (Code of Civ. Proc., § 437c, subd. (p)(1); *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as at least one of the elements of the cause of action or as to each element of a defense thereto. (*Ibid.*; *Consumer Cause v. SmileCare* (2001) 91 Cal.App.4th 454, 467.)

The moving party's ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied—despite deficiencies in the opposition—if the burden has not been carried (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416).

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

B. Analysis

The Complaint asserts a single cause of action for forcible detainer. (Feb. 18, 2025 Complaint, *passim*.) Forcible detainer may be committed by unlawfully maintaining possession of real property after entering it either by force or by stealth. (Code of Civ. Proc., § 1160, subd. (a).) The Complaint alleges the latter, and thus HSBC must prove the following elements: (1) Erlinda unlawfully entered the Property during “night-time[] or during the absence of the occupant” of the Property, and (2) she failed to surrender possession of the Property to the former occupant within five days of a demand to do so. (*Id.*, at subd. (a)(2).)

For purposes of the forcible detainer statute, an “occupant” is one who, “within five days preceding such unlawful entry, was in the peaceable and undisturbed possession” of the property. (Code Civ. Proc., § 1160, subd. (b); *Barlow v. Burns* (1870) 40 Cal. 351, 354 [“remedy (of summary forcible detainer proceeding) is only given to those who are in actual possession, and cannot be sustained by merely showing ... a right of possession”]; but see *Giddings v. 76 Land & Water Co.* (1890) 83 Cal. 96, 99 [plaintiff need not prove “actual, personal presence on the land for five days continuously preceding the unlawful entry”].) However, in lieu of establishing that the plaintiff meets the statutory definition of “occupant” at trial, the plaintiff may instead show only that he or she “was entitled to the possession at the time of the forcible detainer.” (Code Civ. Proc., § 1172; see *White v. Pfeiffer* (1913) 165 Cal. 740, 742.)

HSBC presents evidence that it obtained a judgment for possession of the Property against Erlinda on August 7, 2023. (Jun. 25, 2026 Motion for Summary Judgment (“Motion”), pp. 24–26, 31–45.) The writ was executed by the sheriff on July 24, 2024, placing HSBC in possession of the Property. (*Id.*, at pp. 28–29.) Notably, none of these facts are alleged in the Complaint. (See Complaint, *passim*.) That aside, this evidence is sufficient to establish a prima facie case that HSBC was took possession and was at least entitled to possession at that time.

However, like the prior motion for summary judgment, there is no evidence showing that Erlinda entered the Property “in the night-time[] or during the absence of the occupant” so as to constitute

a forcible detainer. (Code of Civ. Proc., § 1160, subd. (a)(2).) The relevant evidence pertaining to Erlinda's alleged entry onto the Property consists of two declarations from HSBC's agents and an August 14, 2024 letter from Erlinda.

The first declaration states that HSBC's counsel received the letter from Erlinda, that the letter admits Erlinda entered the Property sometime after July 24, 2024, and that Erlinda re-entered the Property without a right to do so. (Motion, p. 47, ¶¶ 7–8, p. 48, ¶ 9.) The second declaration states that the Property has remained occupied by unidentified persons from at least February 10, 2025, through September 9, 2025, and that “unauthorized” occupants remain in possession of the Property, also without specifying whether Erlinda is one of the occupants. (*Id.*, at p. 84, ¶ 2, p. 85, ¶¶ 3–4.) The letter itself, though listing the Property as the return address, does not actually say, admit, or otherwise show that Erlinda had reentered the Property. (*Id.*, at pp. 70–71.)

Construed strictly as required on a motion for summary judgment, this evidence fails to show that Erlinda's entry onto the Property was either during the night or during the temporary absence of HSBC or its agents. This is a necessary element of the cause of action—to conclude otherwise would render the statute's text superfluous. If merely showing an unlawful entry were sufficient, the Legislature would not have included the clause “in the night-time, or during the absence of the occupant of any lands.” (Code Civ. Proc., § 1160, subd. (a)(2).) Forcible detainer is a specific statutory remedy, intended to prevent breaches of the peace and not as a substitute for an action for ejectment. (See *Hodgkins v. Jordan* (1866) 29 Cal. 577, 578.) As such, it was originally only available when the defendant in fact used or threatened force. (*Ibid.*) The subdivision upon which HSBC relies is a limited exception to this requirement, and HSBC has not shown its case falls within this exception.

HSBC has thus failed to carry its initial burden of production of establishing each element of its cause of action for forcible detainer. Accordingly, the motion is DENIED.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Defendant Erlinda Aniel shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.
